

## Opinion of SOTOMAYOR, J.

at 496. *Stanley*, however, cautioned against a case-specific special-factors analysis in the narrow context of “judicial intrusion upon military discipline.” 483 U. S., at 681. As it had in previous cases seeking to raise *Bivens* actions in the military context, the *Stanley* Court emphasized the need to be “protective of military concerns,” 483 U. S., at 681, and to avoid “call[ing] into question military discipline and decision-making,” *id.*, at 682. The Court therefore determined that in the military sphere, the special-factors analysis should be applied somewhat more broadly than the respondent urged. *Id.*, at 681. *Stanley*, in other words, reflected the Court’s longstanding approach to *Bivens* cases: considering the facts and the substantive context of each case and determining whether special factors counseled hesitation. *Stanley* did not purport to articulate a special-factors framework that should apply to all *Bivens* cases going forward.

The Court further declares that “a plaintiff cannot justify a *Bivens* extension based on ‘parallel circumstances’” with previous cases that have recognized a *Bivens* remedy. *Ante*, at 501. To the extent these statements suggest an exacting new-context inquiry, they are in serious tension with the Court’s longstanding rule that trivial differences alone do not create a new *Bivens* context. See *Ziglar*, 582 U. S., at 149; see also *ante*, at 503 (GORSUCH, J., concurring in judgment) (“Candidly, I struggle to see how this set of facts differs meaningfully from those in *Bivens* itself”). Indeed, until today, the Court has never so much as hinted that courts should refuse to permit a *Bivens* action in a case involving facts substantially identical to those in *Bivens* itself. *Supra*, at 511–513.<sup>3</sup>

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<sup>3</sup>The Court supports its decision not to recognize an action under *Bivens* v. *Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), by observing that we have declined to recognize a *Bivens*-style cause of action for other constitutional violations. *Ante*, at 486. What the Court fails to acknowledge, however, is that each of those cases presented a meaningfully new context and/or raised special factors counseling hesitation that